

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

Present:

Mr. Justice Athar Minallah
Mr. Justice Irfan Saadat Khan
Mr. Justice Malik Shahzad Ahmad Khan

Criminal Appeal No.314-L/2020

And

Criminal Petition No.1379-L/2015

Against the judgment of the Lahore High Court, Lahore
dated 24.11.2015 passed in Criminal Appeal No. 1853
of 2011 and Murder Reference No. 444 of 2011

Sajjad
(in CrI. A. 314-L/2020)

...Appellant
Petitioner(s)

Muhammad Sharif
(in CrI. P. 1379-L/2015)

VERSUS

The State, etc.

...Respondent(s)

For the Appellant/
Petitioner(s):

Ms. Aisha Tasneem, ASC
(in CrI. A.314-L/2020)

Nemo (in CrI.P. 1379-L/15)

For the State:

Mr. Tariq Siddique, Addl. PG, Pb.

Date of Hearing:

15.09.2025

JUDGMENT

Irfan Saadat Khan, J.- This Criminal Appeal No. 314-L of 2020, arising out of Jail Petition No. 503 of 2015 (leave having been granted and the petition converted into an appeal), is directed against the judgment dated 24.11.2015 passed by the Lahore High Court (*High Court*),¹ which maintained the conviction of the appellant Sajjad under section 302(b), Pakistan Penal Code, 1860 ("**PPC**"), but converted the sentence of death awarded by the learned Additional Sessions Judge, Kamalia (*Trial Court*),² *vide* judgment dated

¹ In Criminal Appeal No. 1853 of 2011 read with Murder Reference No. 444 of 2011.

² In Sessions Case No. 12-7 of 2010 (arising from FIR No. 87 of 2010, Police Station Pir Mahal, District Toba Tek Singh).

20.10.2011, to imprisonment for life with the benefit of section 382-B, Code of Criminal Procedure, 1898 (“**Cr.P.C.**”), while also maintaining the compensation directed under section 544-A, Cr.P.C.,³ alongside the sentence to be undergone in default thereof.

2. Before proceeding further this Court’s order granting leave⁴ merits reproduction and is set out below:

“[...]– No one represents the convict-petitioner Sajjad as he has filed the instant petition through jail. In the larger interest of justice, we have perused the available record with the assistance of learned Additional Prosecutor General, Punjab. It has been noticed by us that the motive set out by the prosecution regarding a quarrel between petitioner and deceased two days prior to occurrence was not believed by the learned High Court. The petitioner in his statement under section 342, Code of Criminal Procedure took the plea of mental disorder and also produced photocopy of prescription of Dr. Farhat Zia in his defence as Mark-DA. It has also come on record that during trial he remained admitted in the DHQ, Hospital Faisalabad under the care of Dr. Tariq Rashid Consultant Psychiatrist. All these circumstances necessitate reappraisal of entire evidence available on record for safe administration of justice. Leave to appeal is, therefore, granted in this case.

Crl. Petition No. 1379-L of 2015

2. To be heard along with the criminal appeal arising out of connected jail petition.”

3. Having set out this brief context, we may now turn to the First Information Report (“**FIR**”) registered at Muhaminad Sharif’s (the “**complainant/PW-8**”) instance on 18.02.2010 at about 10:45 a.m.. As per the narration therein, on the same day at about 9:00/10:00 a.m., the complainant’s son, Azhar Hussain (the “**deceased**”), was at his house when the appellant Sajjad arrived and took him towards the *Jamia Masjid* (Mosque) of the village. Muhammad Sharif (the complainant/PW-8), along with Imdad Ali (PW-9) and

³ Amounting to Rs. 1,00,000/- to be paid to the legal heirs of the deceased. In the case of default of payment, the appellant would further undergo six months of simple imprisonment (“**S.I.**”).

⁴ *Vide* order dated 29.07.2020.

Zulfiqar Ali (subsequently given up), followed. Near the *Masjid*, they heard some hue and cry and, upon going inside the *Masjid*, allegedly saw the appellant striking the deceased with bricks, which, according to the report, hit the deceased on the left side of his head, ear, jaw and temporal region, causing his death on the spot as the accused fled while waving the bricks. The stated motive in the FIR/complaint was a quarrel and exchange of hot words between the appellant and the deceased two days prior to the occurrence.

4. After the completion of the police investigation and the submission of the *challan*/report, the learned Trial Court framed the charge against the appellant, to which he pleaded not guilty. Upon the conclusion of the trial, the appellant was convicted and sentenced in the terms above, from where he filed an appeal before the High Court, culminating in the impugned judgment. Aggrieved by the High Court's decision commuting the appellant's death sentence to that of life imprisonment on appeal, the complainant in the case also filed Criminal Petition No. 1379-L of 2015 which was set to be heard alongside the appellant's case for acquittal, i.e. Criminal Appeal No.314-L of 2020. This is how the matter is now before us.

5. Ms. Aisha Tasneem, ASC, has entered appearance on behalf of the appellant-Sajjad and stated that the prosecution case is fraught with material doubts: the presence of the complainant Muhammad Sharif (PW-8) and Imdad Ali (PW-9) at the spot is "unnatural," no independent witness from the village was joined, and even the *Imam*/ *Moazzin* of the mosque, where the occurrence is alleged to have taken place, was not examined. She argued that the investigative record is internally inconsistent: while Mazhar Irfan (PW-7) speaks of blood-stained earth and bricks being handed over on 18.02.2010, the recovery memo of the bricks reflects its seizure on 23.02.2010; likewise, the Investigating Officer claims a single visit to the scene, yet the recovery memo

and scaled site plans bear different dates; rendering the proceedings doubtful. She further argued that the matter was, in truth, a blind murder and that the appellant had long-standing mental health issues, was referred to hospital during trial, and his lunacy plea was not meaningfully investigated. Cumulatively, she submitted that the prosecution has failed to prove its case beyond reasonable doubt, entitling the appellant to acquittal.

6. Mr. Tariq Siddique, Additional Prosecutor General for the Province of Punjab, has appeared on behalf of the State and argued that the prosecution has successfully proved the charge beyond reasonable doubt. He submitted that the FIR was lodged promptly on 18.02.2010, naming the appellant with specificity and leaving little room for deliberation. He contended that the ocular account is natural and confidence-inspiring: the complainant Muhammad Sharif (PW-8) and Imdad Ali (PW-9) followed the deceased from his house towards the village mosque and witnessed the appellant perpetrate his murderous assault; the story being internally consistent and free from contradictions or improvements. He further argued that the medical evidence placed on record by Dr. Farooq Raza (PW-5) describes multiple cranio-facial injuries consistent with brick blows and thus corroborates the eye-witness account. He stated that the investigative recoveries, including blood-stained earth and blood-stained bricks were secured by the investigating officer with site documentation by the draftsman (PW-3), lending further assurance to the prosecution version; and that minor discrepancies in dates or paperwork are routine and not fatal. Even if the alleged motive could not be fully established at trial, he submitted, a conviction can validly rest upon trustworthy ocular testimony duly supported by medical and circumstantial corroboration; hence the High Court rightly maintained the conviction.

7. We have heard the learned counsel for the appellant as well as the learned State counsel and have perused the record with their able assistance. No one has appeared on behalf of the complainant in the case.

8. At the very outset, it is pertinent to examine the steps taken by the complainant (PW-8) to register the FIR (Exh.PC/1 based on Ex.PC). In regard to the application submitted by him to the police he stated during cross-examination that:

“I submitted application to Thanidar, and on the basis of same FIR was lodged. I am matriculate. The application was got written by one Akhtar Hussain resident of my village who is a labourer. The house of said Akhtar Hussain is in [...] Mohallah of my village. I went to his house. It consumed about 20-25 minutes in writing application. 25 Pull is at a distance of about 1-½ k.m. from my Village. I went there on a Motorcycle. The police was already there at 25 Pull. Thanidar consumed 5/10 minutes at that place in recording my statement. I had also signed the statement recorded by the I.O. The I.O. sent my statement through constable to P.S. for registration of case. At this stage, learned defence counsel demanded copy of statement of complainant duly signed by him. After perusal of record ADPB submitted that no such statement is available on the record except application Ex.PC.”

The I.O., Muhammad Anwar S.I. (PW-10), states something similar during his examination-in-chief, which is reproduced below:

“On 18.02.2010 I was posted at P.S. Pir Mahal as S.I. On that day I was present on patrol duty at Pull 25 Sandhalianwali road, where Muhammad Sharif complainant appeared before me at 10.45 a.m. He produced application Ex.PC before me which was signed by him. I endorsed the application Ex.PC after going through it and sent the same to the P.S.”

The same I.O. (PW-10) later states during his cross-examination that:

“I was present at Pull 25 for last about 15 minutes when complainant appeared before me. The complainant made his statement which was recorded by me as Ex.PC without any addition or omission on the statement of complaint. Ex.PC was recorded by me at Pull 25. Application was addressed to SHO, P.S. Saddar. I was not posted as SHO in those days. The application was not endorsed by the SHO to me. There is no statement of complaint except Ex.PC. It is incorrect that application

Ex.PC already in written form was produced before me by the complainant.”

Even a bare perusal of these varying statements indicates, at the very least, that the complainant had already prepared a draft complaint when he visited and consulted his relative Akhtar Hussain before the registration of the FIR. More alarmingly, it is possible that this draft complaint resulting from consultation actually formed the basis of the FIR in the case since the I.O. stated that it was “produced” before him, he “endorsed” it and then sent it for the registration of the FIR. While the complainant (PW-8) explains that his “statement” was also separately recorded by the *Thanidar* and that it was actually sent for registration of the FIR, this does not address the outcome of the application he prepared in consultation with his relative. Importantly, there is no record of this statement that was allegedly recorded by the *Thanidar*; there is only proof of the application recorded by the complainant’s relative. Likewise, disclaiming his earlier statements during examination-in-chief, the I.O. states during cross-examination that he actually did record the statement of the complainant as Ex.PC; that he sent it to the P.S. for the registration of the FIR; and that the complainant had not arrived with the application already written. Although this Court is mindful that translation, transcription, and typographical errors may at times occur in the recording of witness testimonies, the foregoing instances are free from such errors and must be read as they stand. Thus, the entire process of the registration of the FIR, in this case, has been rendered doubtful.

9. Similarly, the deposition of Muhammad Rafique, Draftsman (PW-3), reveals that he has not mentioned the specific point from where the accused was stated to have inflicted injuries to the deceased, leaving the matter of inflicting brick blows as per the site-map highly doubtful. He further stated that

there is only one gate of *Masjid* which opens towards the north and from point No.1 a person is not visible if observed from the street.

10. Coming to the ocular account deposed by the complainant (PW-8) and Imdad Ali (PW-9),⁵ there are material points that require our attention. Here it is pertinent to note that the prosecution claimed that the motive for the crime was a fight that had taken place between the appellant and the deceased two days prior to the occurrence. It is then a matter of concern that the complainant party, which followed the appellant and the deceased to the *Masjid*, permitted the appellant to take the deceased away in the first place; especially on the flimsy pretext of calling him for work at the *Masjid*. This immediate improbability notwithstanding, the conduct of the complainant party as they pursued the appellant and deceased is also perplexing. According to the FIR and ocular account, the complainant party followed the appellant and deceased till nearby the *Masjid* when they heard a hue and cry, whereupon they entered the *Masjid*. Moreover, there also seems to be an improvement in the deposition of PW-8, as in the FIR he mentioned that accused took the deceased to the nearby under construction *Masjid*, whereas in his statement he stated that the accused took his son for some "work" to the said *Masjid*.⁶ Moreover PW-9 in his deposition also mentioned that we entered the *Masjid* through a window whereas, as per the deposition of PW-8 he stated that we entered the *Masjid* after hearing hue and cry of the deceased and there was no mention of entering the *Masjid* either through gate or window. The eyewitnesses stated to have then witnessed the appellant perpetrate his grievous assault. While they state that they raised a *Lalkara* (they called out threateningly/loudly) to frighten the appellant away from the deceased, their conduct was unnatural first to the extent that they did not intervene during the assault and second, more

⁵ Zulfikar Ali was also said to have witnessed the occurrence but was given up by the prosecution.

⁶ The same has been mentioned by Imdad Ali (PW-9).

importantly, because they failed to overpower and apprehend the appellant despite being greater in number, particularly when the appellant was armed only with a brick or brickbat and there was only one exit from the *Masjid*. This failure to intervene accompanied by a more glaring failure to apprehend the accused-appellant confirms that the complainant party/eyewitnesses' conduct was unnatural, rendering their testimony doubtful since their actual presence at the scene is questionable. Reference in this regard may be made to the cases of "*Pathan v. The State*" (2015 SCMR 315), "*Zafar v. The State*" (2018 SCMR 326), and "*Liaqat Ali v. The State*" (2009 SCMR 95).

11. Adverting to the factum of recoveries, the record states that the police recovered blood-stained earth from the scene on 18.02.2010 and handed it over to the *Moharrir* of the police station, Mazhar Irfan S.I. (PW-7), that same day. The appellant was then arrested on 21.02.2010 and subsequently on 23.02.2010, he allegedly led to the recovery of the brick and brickbat used to commit the murder, *vide* recovery memo Ex.PH. If the *Moharrir* Mazhar Irfan S.I.'s (PW-7) examination-in-chief is, however, scrutinized he states that:

"On 18.2.2010 I was posted as ASI/Muharrir of P.S. Pir Mahal. On the same day, I.O. of this case handedover to me two sealed parcels one said to contain blood stain earth and the other blood stained brick, which I kept in the Malkhana in safe custody and on 28.2.2010, I handedover the above said parcels to Muhammad Ashfaq 718/C intact for onward transmission to the office of Chemical Examiner Lahore."

Likewise, the I.O. (PW-10) states during cross-examination that:

"That the parcels of brick bats was handedover to the Muharrir of the P.S. on the first day of the occurrence."

It appears then that the brick and brickbat were handed over to the *Moharrir* of the police station on 18.02.2010 before they were even stated to have been recovered at the appellant's instance, i.e. on 23.02.2010; the latter must

obviously precede the former but this is not the case. Similarly, the I.O. significantly contradicts himself by stating at one place that the accused led to the recovery of the brick and brickbat on 23.02.2010 and stating immediately after that he handed over those same bricks/brickbats to the *Moharrir* on a date before they were even recovered, i.e. 18.02.2010.

12. The record for the recovery of the brick and brickbat also shows that they were retrieved from within the very *Masjid* where the occurrence took place, *vide* recovery memo (Ex.PH) and map (Ex.PH/1). While the FIR and ocular account both state that the appellant was seen exiting the *Masjid* while brandishing the brick and brickbat, the recovery proceedings and witnesses insist that the articles were found within the *Masjid*. In the facts of the case, it is highly improbable that the appellant returned to the *Masjid* to place the incriminating material back in the premises where he allegedly perpetrated his crime. Even otherwise, the recovery was effected from an open/public space, accessible to all, and thus it cannot be argued that it was made from the appellant's exclusive possession, thereby diminishing its probative value. Again, no independent witnesses had been associated in the various recovery proceedings or the trial despite their ready availability considering that the *Masjid* is frequented by worshippers and supplicants. Notably, neither the *Imam* of the *Masjid*, residing adjacent thereto, nor other neighbours, were associated during the investigation or trial. Further, the recovery witnesses in this case themselves admitted that they were "*called*" by the *Thanidar* to "*effect the recovery from the accused*". The recovery of the brick and brickbat allegedly used to commit the murder, and the report of the chemical examiner confirming human bloodstains thereon, are thus doubtful and inconsequential.

13. As for motive, the edifice erected by the prosecution does not inspire confidence and, on the material available, stands unproved. This has already

been noticed by the High Court in the impugned judgment. The alleged prior altercation was not established through independent corroboration, and the investigation yielded no reliable proof to sustain it. In a case where the ocular account itself is beset with doubts, the failure to prove motive further erodes the veracity of the allegations against the appellant.

14. The foregoing paragraphs highlight material flaws in the prosecution case. It cannot then safely be said that the guilt of the appellant has been proved beyond reasonable doubt. Since the matter is rife with doubt and replete with contradiction, the appellant is to be extended the benefit of the same; making his case one that merits acquittal. Reference may be made to the cases of *Muhammad Hassan v. The State* (2024 SCMR 1427); *Abdul Samad v. The State* (2025 SCP 31); *Tariq Parvez v. The State* (1995 SCMR 1345); *Muhammad Akram v. The State* (2009 SCMR 230); and *Muhammad Imran v. The State* (2020 SCMR 857) in this regard.

15. In view of what has been discussed above, the instant appeal is allowed and the impugned judgments of the Trial Court and the High Court are set aside. Sajjad is acquitted of the charge levelled against him, and he shall be released from jail forthwith if he is not required to be detained in any other matter.

Criminal Petition No. 1379-L of 2015:

16. The complainant's petition, having become infructuous because of the appellant's acquittal, is dismissed.

17. These are the reasons for our short order dated 15.09.2025, which is reproduced below for the facility of reference:

“For reasons to be recorded later, Criminal Appeal No. 314-L of 2020 out of Jail Petition No. 503 of 2015 is allowed and, consequently, the judgments of the High Court and the Trial Court dated 24.11.2015 and 20.10.2011 respectively are set aside. The

appellant is acquitted from the charge framed against him by extending the benefit of doubt. In case he is not required to be incarcerated in any other matter then he shall forthwith be released. Likewise, Criminal Petition No. 1379-L of 2015 is dismissed since it has become infructuous because of the acquittal of the appellant”

ISLAMABAD
15.09.2025
Mustafa, L.C

“Not Approved for Reporting”